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This Court, for its part, apparently helped to perpetuate the illusion, since it reiterated time and again what *Apodaca* had established. See *Timbs v. Indiana*, 586 U.S. 146, 150, n. 1 (2019) (*Apodaca* held “that the Sixth Amendment requires jury unanimity in federal, but not state, criminal proceedings”); *McDonald v. Chicago*, 561 U.S. 742, 766, n. 14 (2010) (Sixth Amendment “does not require a unanimous jury verdict in state criminal trials”); *United States v. Gaudin*, 515 U.S. 506, 511, n. 2 (1995) (*Apodaca* “conclude[d] that jury unanimity is not constitutionally required”); *Schad v. Arizona*, 501 U.S. 624, 634, n. 5 (1991) (plurality opinion) (“[A] state criminal defendant, at least in noncapital cases, has no federal right to a unanimous jury verdict”); *Brown v. Louisiana*, 447 U.S. 323, 330–331 (1980) (plurality opinion) (“[T]he constitutional guarantee of trial by jury” does not prescribe “the exact proportion of the jury that must concur in the verdict”); *Burch v. Louisiana*, 441 U.S. 130, 136 (1979) (*Apodaca* “conclude[d] . . . that a jury’s verdict need not be unanimous to satisfy constitutional requirements”); *Ludwig v. Massachusetts*, 427 U.S. 618, 625 (1976) (“holding” in *Apodaca* was that “the jury’s verdict need not be unanimous”); see also *Holland v. Illinois*, 493 U.S. 474, 511 (1990) (Stevens, J., dissenting) (“we have permitted nonunanimous verdicts,” citing *Apodaca*); *McKoy v. North Carolina*, 494 U.S. 433, 468 (1990) (Scalia, J., dissenting) (the Court has “approved verdicts by less than a unanimous jury,” citing *Apodaca*).

Consistent with these statements of the governing law, whenever defendants convicted by non-unanimous verdicts sought review in this Court and asked that *Apodaca* be overruled, the Court denied those requests—without a single registered dissent.¹⁰ Even the legal academy, never shy

¹⁰ See, e.g., *Magee v. Louisiana*, 585 U.S. 1024 (2018); *Sims v. Louisiana*, 584 U.S. 951 (2018); *Baumberger v. Louisiana*, 583 U.S. 950 (2017); *Jackson v. Louisiana*, 572 U.S. 1088 (2014); *McElveen v. Louisiana*, 568 U.S. 1163 (2013); *Miller v. Louisiana*, 568 U.S. 1157 (2013); *Bowen v. Oregon*, 558 U.S. 815 (2009); *Lee v. Louisiana*, 555 U.S. 823 (2008); *McIntyre v.*

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about puncturing misconceptions, was taken in.¹¹ Everybody thought *Apodaca* was a precedent. But, according to three of the Justices in the majority, everybody was fooled. *Apodaca*, the precedent, was a mirage. Can this be true?

No, it cannot. The idea that *Apodaca* was a phantom precedent defies belief. And it certainly disservices important objectives that *stare decisis* exists to promote, including evenhandedness, predictability, and the protection of legitimate reliance. See, e.g., *Gamble v. United States*, 587 U.S. 678, 691 (2019); *Kimble v. Marvel Entertainment, LLC*, 576 U.S. 446, 455–456 (2015); *Payne v. Tennessee*, 501 U.S. 808, 827 (1991).

B

Under any reasonable understanding of the concept, *Apodaca* was a precedent, that is, “a decided case that furnishes a basis for determining later cases involving similar facts or issues.” Black’s Law Dictionary 1366 (10th ed. 2014); see also J. Salmond, *Jurisprudence* 191 (10th ed. 1947); M. Gerhardt, *The Power of Precedent* 3 (2008); Landes & Posner,

Louisiana, 449 U.S. 871 (1980); *Hodges v. Louisiana*, 434 U.S. 1074 (1978). On June 7, 1972, shortly after *Apodaca* was handed down, the Court denied certiorari in a number of cases asking the Court to recognize a right to unanimity in state jury trials. *Blevins v. Oregon*, 406 U.S. 972; *Martinka v. Oregon*, 406 U.S. 973; *Andrews v. Oregon*, 406 U.S. 973; *Planck v. Oregon*, 406 U.S. 973; *Riddell v. Oregon*, 406 U.S. 973; *Mitchell v. Oregon*, 406 U.S. 973; *Atkison v. Oregon*, 406 U.S. 973; *Temple v. Oregon*, 406 U.S. 973; *Davis v. Oregon*, 406 U.S. 974; *O’Dell v. Oregon*, 406 U.S. 974; *Miller v. Oregon*, 406 U.S. 974.

Contrary to the majority opinion, I am not arguing that the denial of certiorari is precedential. See *ante*, at 105, n. 56. My point, instead, is that the Court’s pattern of denying review in cases presenting the question whether unanimity is required in state trials is evidence that this Court regarded *Apodaca* as a precedent.

¹¹ D. Rudstein, C. Erlinder, & D. Thomas, 3 *Criminal Constitutional Law* § 14.03[3] (2019); W. LaFave, J. Israel, N. King, & O. Kerr, 6 *Criminal Procedure* § 22.1(e) (2015); W. Rich, 2 *Modern Constitutional Law* § 30:27 (3d ed. 2011).

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Legal Precedent: A Theoretical and Empirical Analysis, 19 J. Law & Econ. 249, 250 (1976).

Even though there was no opinion of the Court, the decision satisfies even the narrowest understanding of a precedent as this Court has understood the concept: The decision prescribes a particular outcome when all the conditions in a clearly defined set are met. See *Seminole Tribe of Fla. v. Florida*, 517 U.S. 44, 67 (1996) (explaining that, at the very least, we are bound by the “result” in a prior case). In *Apodaca*, this means that when (1) a defendant is convicted in state court, (2) at least 10 of the 12 jurors vote to convict, and (3) the defendant argues that the conviction violates the Constitution because the vote was not unanimous, the challenge fails. A majority of the Justices in *Apodaca* expressly agreed on that result, and that result is a precedent that had to be followed in subsequent cases until *Apodaca* was overruled.

That this result constituted a precedent follows *a fortiori* from our cases holding that even our summary affirmances of lower court decisions are precedents for “the precise issues presented and necessarily decided” by the judgment below. *Mandel v. Bradley*, 432 U.S. 173, 176 (1977) (*per curiam*). If the *Apodaca* Court had summarily affirmed a state-court decision holding that a jury vote of 10 to 2 did not violate the Sixth Amendment, that summary disposition would be a precedent. Accordingly, it is impossible to see how a full-blown decision of this Court reaching the same result can be regarded as a non-precedent.¹²

C

What do our three colleagues say in response? They begin by suggesting that Louisiana conceded that *Apodaca*

¹² It is true, of course, that a summary affirmance has less precedential value than a decision on the merits, see, e.g., *Comptroller of Treasury of Md. v. Wynne*, 575 U.S. 542, 560–561 (2015), but we have never said the same about decisions on the merits that were reached without an opinion of the Court.

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is not a precedent. See *ante*, at 101–102. This interpretation of the State’s position is questionable,¹³ but even if Louisiana made that concession, how could that settle the matter? What about Oregon, the only State that still permits non-unanimous verdicts? Oregon certainly did not make such a concession. On the contrary, it submitted an *amicus* brief arguing strenuously that *Apodaca* is a precedent and that it should be retained. Brief for State of Oregon as *Amicus Curiae* 6–32. And what about any other State that might want to allow such verdicts in the future? So the majority’s reliance on Louisiana’s purported concession simply will not do.

Our three colleagues’ next try is to argue that *Apodaca* is not binding because a case has no *ratio decidendi* when a majority does not agree on the reason for the result. *Ante*, at 104, and n. 54. This argument, made in passing, constitutes an attack on the rule that the Court adopted in *Marks v. United States*, 430 U.S. 188 (1977), for determining the holding of a decision when there is no majority opinion. Under the *Marks* rule, “[w]hen a fragmented Court decides a case and no single rationale explaining the result enjoys the assent of five Justices, the holding of the Court may be viewed as that position taken by those Members who concurred in the judgments on the narrowest grounds.” *Id.*, at 193 (internal quotation marks omitted). This rule ascribes precedential status to decisions made without majority agreement on the underlying rationale, and it is therefore squarely contrary to the argument of the three Justices who regard *Apodaca* as non-precedential.

The *Marks* rule is controversial, and two Terms ago, we granted review in a case that implicated its meaning. See *Hughes v. United States*, 584 U.S. 675 (2018). But we ultimately decided the case on another ground and left the

¹³ What the State appears to have meant is that Justice Powell’s reasoning was not binding. See Brief for Respondent 47; Tr. of Oral Arg. 37–38.

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Marks rule intact. As long as that rule stands, it refutes the argument that *Apodaca* is not binding because a majority did not agree on a common rationale.

Finally, our three colleagues contend that treating *Apodaca* as a precedent would require the Court “to embrace a new and dubious proposition: that a single Justice writing only for himself has the authority to bind this Court to propositions it has already rejected.” *Ante*, at 102. This argument appears to weave together three separate questions relating to the precedential effect of decisions in which there is no majority opinion. I will therefore attempt to untangle these questions and address each in turn.

An initial question is whether, in a case where there is no opinion of the Court, the position taken by a single Justice in the majority can constitute the binding rule for which the decision stands. Under *Marks*, the clear answer to this question is yes. The logic of *Marks* applies equally no matter what the division of the Justices in the majority, and I am aware of no case holding that the *Marks* rule is inapplicable when the narrowest ground is supported by only one Justice. Certainly the lower courts have understood *Marks* to apply in that situation.¹⁴

The next question is whether the *Marks* rule applies any differently when the precedent that would be established by a fractured decision would overrule a prior precedent. Again, the logic of *Marks* dictates an affirmative answer, and I am aware of no case holding that the *Marks* rule applies

¹⁴ See *Grutter v. Bollinger*, 539 U.S. 306, 321 (2003) (discussing lower court’s treatment of Justice Powell’s opinion in *Regents of Univ. of Cal. v. Bakke*, 438 U.S. 265 (1978)); *Planned Parenthood of Southeastern Pa. v. Casey*, 947 F.2d 682, 694–698 (CA3 1991) (noting that “[t]he binding opinion from a splintered decision is as authoritative for lower courts as a nine-Justice opinion,” and concluding based on opinions of Justice O’Connor that the test for the constitutionality of abortion regulations is undue burden), *aff’d in part and rev’d in part*, 505 U.S. 833 (1992); *Blum v. Witco Chemical Corp.*, 888 F.2d 975, 981 (CA3 1989); see also *United States v. Duvall*, 705 F.3d 479, 483, n. 1 (CA4 2013) (Kavanaugh, J., for the court).

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any differently in this situation. But as far as the present case is concerned, this question is academic because *Apodaca* did not overrule any prior decision of this Court. At most, what the Court had “recognized,” *ante*, at 92, in prior cases is that the Sixth Amendment guaranteed the right to a unanimous jury verdict *in trials in federal and territorial courts*.¹⁵ Whether the same rule applied in state prosecutions had not been decided, and indeed, until *Duncan v. Louisiana*, 391 U. S. 145, 154–158 (1968), was handed down just four years before *Apodaca*, the Sixth Amendment had not been held to apply to the States.

The final question is whether Justice Powell’s reasoning in *Apodaca*—namely, his view that the Fourteenth Amendment did not incorporate every aspect of the Sixth Amendment jury-trial right—is a binding precedent, and the answer to that question is no. When, in the years after *Apodaca*, new questions arose about the scope of the jury-trial right in state court—as they did in cases like *Apprendi v. New Jersey*, 530 U. S. 466 (2000), and *Blakely v. Washington*, 542 U. S. 296 (2004)—nobody thought for a second that *Apodaca* committed the Court to Justice Powell’s view that the right has different dimensions in state and federal cases. And no one on this Court or on a lower court had any trouble locating the narrow common ground between Justice Powell and the plurality in *Apodaca*: The States need not require unanimity to comply with the Constitution.

For all these reasons, *Apodaca* clearly was a precedent, and if the Court wishes to be done with it, it must explain why overruling *Apodaca* is consistent with the doctrine of *stare decisis*.

III

A

Stare decisis has been a fundamental part of our jurisprudence since the founding, and it is an important doctrine.

¹⁵ See, e. g., *Andres v. United States*, 333 U. S. 740, 748 (1948); *Thompson v. Utah*, 170 U. S. 343, 351 (1898).

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But, as we have said many times, it is not an “inexorable command.” *Payne*, 501 U.S., at 828; *Gamble*, 587 U.S., at 690–691. There are circumstances when past decisions must be overturned, but we begin with the presumption that we will follow precedent, and therefore when the Court decides to overrule, it has an obligation to provide an explanation for its decision.

This is imperative because the Court should have a body of *neutral* principles on the question of overruling precedent. The doctrine should not be transformed into a tool that favors particular outcomes.¹⁶

B

What is the majority’s justification for overruling *Apodaca*? With no apparent appreciation of the irony, today’s majority, which is divided into four separate camps,¹⁷ criticizes the *Apodaca* majority as “badly fractured.” *Ante*, at 93. But many important decisions currently regarded as precedents were decided without an opinion of the Court.¹⁸

¹⁶ It is also important that the Court as a whole adhere to its “precedent[s] about precedent.” *Alleyne v. United States*, 570 U.S. 99, 134 (2013) (ALITO, J., dissenting). If individual Justices apply different standards for overruling past decisions, the overall effects of the doctrine will not be neutral.

¹⁷ Three Justices join the principal opinion in its entirety. Two Justices do not join Part IV–A, but each of these Justices takes a position not embraced by portions of the principal opinion that they join. See *ante*, at 112 (SOTOMAYOR, J., concurring in part) (disavowing principal opinion’s criticism of Justice White’s *Apodaca* opinion as “functionalist”); *ante*, at 129–131 (KAVANAUGH, J., concurring in part) (opining that the decision in this case does not apply on collateral review). And JUSTICE THOMAS would decide the case on entirely different grounds and thus concurs only in the judgment. See *ante*, at 132.

¹⁸ See, e.g., *National Federation of Independent Business v. Sebelius*, 567 U.S. 519 (2012); *Williams v. Illinois*, 567 U.S. 50 (2012); *J. McIntyre Machinery, Ltd. v. Nicastro*, 564 U.S. 873 (2011); *McDonald v. Chicago*, 561 U.S. 742 (2010); *Shady Grove Orthopedic Associates, P. A. v. Allstate Ins. Co.*, 559 U.S. 393 (2010); *Baze v. Rees*, 553 U.S. 35 (2008); *Crawford v. Marion County Election Bd.*, 553 U.S. 181 (2008); *Hamdan v. Rumsfeld*, 548 U.S. 557 (2006); *Medtronic, Inc. v. Lohr*, 518 U.S. 470 (1996);

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Does the majority mean to suggest that all such precedents are fair game?

The majority's primary reason for overruling *Apodaca* is the supposedly poor "quality" of Justice White's plurality opinion and Justice Powell's separate opinion. *Ante*, at 105–106. The majority indicts Justice White's opinion on five grounds: (1) it "spent almost no time grappling with the historical meaning of the Sixth Amendment's jury trial right,"¹⁹ (2) it did not give due weight to the "Court's long-repeated statements that [the right] demands unanimity,"²⁰ (3) it did not take into account "the racist origins of [the] Louisian[a] and Orego[n] laws,"²¹ (4) it looked to the function of the jury-trial right,²² and (5) it engaged in "a breezy cost-benefit analysis" that, in any event, did not properly weigh the costs and benefits.²³ All these charges are overblown.

First, it is quite unfair to criticize Justice White for not engaging in a detailed discussion of the original meaning of the Sixth Amendment jury-trial right since he had already done that just two years before in his opinion for the Court in *Williams v. Florida*, 399 U. S. 78, 92–100 (1970). In *Williams*, after examining that history, he concluded that the Sixth Amendment did not incorporate every feature of the common-law right (a conclusion that the majority, by the way, does not dispute). And in *Apodaca*, he built on the analysis in *Williams*. Accordingly, there was no need to repeat what had been said before.

Second, it is similarly unfair to criticize Justice White for not discussing the prior decisions that commented on jury

Richmond v. J. A. Croson Co., 488 U. S. 469 (1989); *Bakke*, 438 U. S. 265; *Gregg v. Georgia*, 428 U. S. 153 (1976) (joint opinion of Stewart, Powell, and Stevens, JJ.).

¹⁹ *Ante*, at 106.

²⁰ *Ibid.*

²¹ *Ibid.*

²² *Ibid.*

²³ *Ante*, at 99.

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unanimity. None of those decisions went beyond saying that this was a feature of the common-law right or cursorily stating that unanimity was required.²⁴ And as noted, *Williams* had already held that the Sixth Amendment did not preserve all aspects of the common-law right.

Third, the failure of Justice White (and Justice Powell) to take into account the supposedly racist origins of the Louisiana and Oregon laws should not be counted as a defect for the reasons already discussed. See *supra*, at 142.

Fourth, it is hard to know what to make of the functionalist charge. One Member of the majority explicitly disavows this criticism, see *ante*, at 112 (SOTOMAYOR, J., concurring in part), and it is most unlikely that all the Justices in the majority are ready to label all functionalist decisions as poorly reasoned. Most of the landmark criminal procedure decisions from roughly *Apodaca*'s time fall into that category. See *Mapp v. Ohio*, 367 U.S. 643, 654 (1961) (Fourth Amendment); *Miranda v. Arizona*, 384 U.S. 436, 444 (1966) (Fifth Amendment); *Gideon v. Wainwright*, 372 U.S. 335, 344–345 (1963) (Sixth Amendment); *Furman v. Georgia*, 408 U.S. 238, 239 (1972) (*per curiam*) (Eighth Amendment).²⁵ Are they all now up for grabs?

The functionalist criticism dodges the knotty problem that led Justice White to look to the underlying purpose of the jury-trial right. Here is the problem. No one questions that the Sixth Amendment incorporated *the core* of the common-law jury-trial right, but did it incorporate *every feature* of the right? Did it constitutionalize the requirement that there be 12 jurors even though nobody can say why 12 is the magic number? And did it incorporate features that

²⁴ See, e.g., *Andres*, 333 U.S., at 748; *Thompson*, 170 U.S., at 351.

²⁵ Five Justices in *Furman* found that the Eighth Amendment imposes an evolving standard of decency, 408 U.S., at 255–257 (Douglas, J., concurring); *id.*, at 265–269 (Brennan, J., concurring); *id.*, at 309–310 (Stewart, J., concurring); *id.*, at 312–314 (White, J., concurring); *id.*, at 316, 322–333 (Marshall, J., concurring), and our subsequent cases have done the same.

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we now find highly objectionable, such as the exclusion of women from jury service? At the time of the adoption of the Sixth Amendment (and for many years thereafter), women were not regarded as fit to serve as a defendant's peers. Unless one is willing to freeze in place late 18th-century practice, it is necessary to find a principle to distinguish between the features that were incorporated and those that were not. To do this, Justice White's opinion for the Court in *Williams* looked to the underlying purpose of the jury-trial right, which it identified as interposing a jury of the defendant's peers to protect against oppression by a "‘corrupt or overzealous prosecutor’" or a "‘compliant, biased, or eccentric judge.’" 399 U. S., at 100 (quoting *Duncan*, 391 U. S., at 156).

The majority decries this "functionalist" approach but provides no alternative. It does not claim that the Sixth Amendment incorporated every feature of common-law practice, but it fails to identify any principle for identifying the features that were absorbed. On the question of jury service by women, the majority's only answer, buried in a footnote, is that the exclusion of women was outlawed by "further constitutional amendments," *ante*, at 101, n. 47, presumably the Fourteenth Amendment. Does that mean that the majority disagrees with the holding in *Taylor v. Louisiana*, 419 U. S. 522 (1975)—another opinion by Justice White—that the exclusion of women from jury service violates *the Sixth Amendment*? *Id.*, at 531, 533–536.²⁶

²⁶ The majority also notes that the Judiciary Act of 1789 pegged the qualifications for service on federal juries to those used in the State in which a case was tried, *ante*, at 100–101, n. 47, but since all States barred women, see *Taylor*, 419 U. S., at 536, it is hard to see how the 1789 Act can provide a ground for distinguishing the common law's requirement of unanimity from its insistence that women were not fit to serve.

Jury practice at the time of the founding differed from current practice in other important respects. Jurors were not selected at random. "[P]ublic officials called selectmen, supervisors, trustees, or 'sheriffs of the parish' exercised what Tocqueville called 'very extensive and very arbitrary'

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Fifth, it is not accurate to say that Justice White based his conclusion on a cost-benefit analysis of requiring jury unanimity. His point, rather, was that what the Court had already identified as the fundamental purpose of the jury-trial right was not undermined by allowing a verdict of 11 to 1 or 10 to 2.

I cannot say that I would have agreed either with Justice White's analysis or his bottom line in *Apodaca* if I had sat on the Court at that time, but the majority's harsh criticism of his opinion is unwarranted.

What about Justice Powell's concurrence? The majority treats Justice Powell's view as idiosyncratic, but it does not merit that derision. Justice Powell's belief that the Constitution allows the States a degree of flexibility in the interpretation of certain constitutional rights, although not our dominant approach in recent years, *McDonald*, 561 U. S., at 759–766, has old and respectable roots. For a long time, that was the Court's approach. See *id.*, at 759–761. Only gradually did the Court abandon this “two-tier” system, see *id.*, at 762–767, and it was not until *Duncan, supra*, at 154–158, decided just four years before *Apodaca*, that the Sixth Amendment jury-trial right was held to apply to the States at all. Justice Powell's approach is also not without recent proponents, including, at least with respect to the Second Amendment, Justices now in the majority.²⁷

powers in summoning jurors.” Alschuler & Deiss, A Brief History of the Criminal Jury in the United States, 61 U. Chi. L. Rev. 867, 879–880 (1994). And “American trial judges . . . routinely summarized the evidence for jurors and often told jurors which witnesses they found most credible, and why.” Sklansky, Evidentiary Instructions and the Jury as Other, 65 Stan. L. Rev. 407, 454 (2013). Any attempt to identify the aspects of late 18th-century practice that were incorporated into the Sixth Amendment should take the full picture into account and provide a principle for the distinction.

²⁷ As recently as 2010, prominent advocates urged us to hold that a provision of the Bill of Rights applies differently to the Federal Government and the States. In *McDonald*, 561 U. S. 742, the city of Chicago and some

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Even now, our cases do not hold that *every* provision of the Bill of Rights applies in the same way to the Federal Government and the States. A notable exception is the Grand Jury Clause of the Fifth Amendment, a provision that, like the Sixth Amendment jury-trial right, reflects the importance that the founding generation attached to juries as safeguards against oppression. In *Hurtado v. California*, 110 U. S. 516, 538 (1884), the Court held that the Grand Jury Clause does not bind the States and that they may substitute preliminary hearings at which the decision to allow a prosecution to go forward is made by a judge rather than a defendant's peers. That decision was based on reasoning that is not easy to distinguish from Justice Powell's in *Apodaca*. *Hurtado* remains good law and is critically important to the 28 States that allow a defendant to be prosecuted for a felony without a grand jury indictment.²⁸ If we took the same ap-

of its *amici* argued that, despite our decision in *District of Columbia v. Heller*, 554 U. S. 570 (2008), States and cities should be given leeway to regulate the possession of a firearm in the home for self-defense in accordance with the particular needs and desires of their citizens. 561 U. S., at 753. Although this argument did not prevail, four Justices, some now in the majority, appeared to take that view. See *id.*, at 927 (BREYER, J., joined by GINSBURG and SOTOMAYOR, JJ., dissenting) (observing that “gun violence . . . varies as between rural communities and cities” and arguing that States and cities should be free to adopt rules that meet local needs and preferences); *id.*, at 866 (Stevens, J., dissenting) (“The rights protected against state infringement by the Fourteenth Amendment’s Due Process Clause need not be identical in shape or scope to the rights protected against Federal Government infringement by the various provisions of the Bill of Rights”).

²⁸ See Ariz. Const., Art. 2, § 30; Ark. Const., Amdt. 21, § 1; Cal. Const., Art. I, § 14; Colo. Rev. Stat. § 16–5–205 (2019); Conn. Gen. Stat. § 54–46 (2017); Haw. Const., Art. I, § 10; Idaho Const., Art. I, § 8; Ill. Comp. Stat., ch. 725, § 5/111–2(a) (West 2018); Ind. Code § 35–34–1–1(a) (2019); Iowa Ct. Rule 2.5 (2020); Kan. Stat. Ann. § 22–3201 (2007); Md. Crim. Proc. Code Ann. §§ 4–102, 4–103 (2018); Mich. Comp. Laws § 767.1 (1979); Mo. Const., Art. I, § 17; Mont. Const., Art. II, § 20(1); Neb. Rev. Stat. § 29–1601 (2016); Nev. Const., Art. I, § 8; N. M. Const., Art. II, § 14; N. D. Rule Crim. Proc. 7(a) (2018–2019); Okla. Const., Art. II, § 17; Ore. Const. (amended),

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proach to the *Hurtado* question that the majority takes in this case, the holding in that case could be called into question.

The majority's only other reason for overruling *Apodaca* is that it is inconsistent with related decisions and recent legal developments. *Ante*, at 106–107; *ante*, at 112 (SOTOMAYOR, J., concurring in part). I agree that Justice Powell's view on incorporation is not in harmony with the bulk of our case law, but the majority's point about "recent legal developments" is an exaggeration. No subsequent Sixth Amendment decision has undercut the plurality. And while Justice Powell's view on incorporation has been further isolated by later cases holding that two additional provisions of the Bill of Rights apply with full force to the States, see *Timbs*, 586 U.S., at 149 (Eighth Amendment's Excessive Fines Clause); *McDonald*, *supra*, at 791 (plurality opinion) (Second Amendment), the project of complete incorporation was nearly done when *Apodaca* was handed down. See *McDonald*, *supra*, at 765, n. 13.

While the majority worries that *Apodaca* is inconsistent with our cases on incorporation, the majority ignores something far more important: the way in which *Apodaca* is intertwined with the body of our Sixth Amendment case law. As I have explained, see *supra*, at 152, the *Apodaca* plurality's reasoning was based on the same fundamental mode of analysis as that in *Williams*, 399 U.S. 78, which had held just two years earlier that the Sixth Amendment did not constitutionalize the common law's requirement that a jury have 12 members. Although only one State, Oregon, now permits

Art. VII, §§ 5(3)–(5); Pa. Const., Art. I, § 10 (providing that "[e]ach of the several courts of common pleas may, with the approval of the Supreme Court, provide for the initiation of criminal proceedings therein by information"—a condition that has now been met in all counties); see also 42 Pa. Cons. Stat. § 8931 (2015); S. D. Const., Art. VI, § 10; Utah Const., Art. I, § 13; Vt. Rule Crim. Proc. 7(a) (2018); Wash. Rev. Code § 10.37.015 (2019); Wis. Stat. § 967.05 (2015–2016); Wyo. Stat. Ann. § 7–1–106(a) (2019).

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non-unanimous verdicts, many more allow six-person juries.²⁹ Repudiating the reasoning of *Apodaca* will almost certainly prompt calls to overrule *Williams*.

C

Up to this point, I have discussed the majority's reasons for overruling *Apodaca*, but that is only half the picture. What convinces me that *Apodaca* should be retained are the enormous reliance interests of Louisiana and Oregon. For 48 years, Louisiana and Oregon, trusting that *Apodaca* is good law, have conducted thousands and thousands of trials under rules allowing non-unanimous verdicts. Now, those States face a potential tsunami of litigation on the jury-unanimity issue.

At a minimum, all defendants whose cases are still on direct appeal will presumably be entitled to a new trial if they were convicted by a less-than-unanimous verdict and preserved the issue in the trial court. And at least in Oregon, even if no objection was voiced at trial, defendants may be able to challenge their convictions based on plain error. See Ore. Rule App. Proc. 5.45(1), and n. 1 (2019); *State v. Serrano*, 355 Ore. 172, 179, 324 P. 3d 1274, 1280 (2014). Oregon asserts that more than a thousand defendants whose cases are still on direct appeal may be able to challenge their convictions if *Apodaca* is overruled. Brief for State of Oregon as *Amicus Curiae* 12–13.³⁰ The State also reports that “[d]efendants are arguing that an instruction allowing for non-unanimous verdicts is a structural error that requires reversal for *all* convictions, even for those for which the jury was

²⁹See Ariz. Rev. Stat. Ann. §21–102 (2013); Conn. Gen. Stat. §54–82; Fla. Rule Crim. Proc. §3.270 (2019); Ind. Code §35–37–1–1(b)(2); Utah Code §78B–1–104 (2019).

³⁰The majority arrives at a different figure based on the number of felony jury trials in Oregon in 2018, see *ante*, at 108, and n. 68, but it does not take 2019 into account. And since we do not know how many cases remain on direct appeal, such calculations are unreliable.

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not polled or those for which the jury *was* unanimous.” *Id.*, at 14.

Unimpressed by these potential consequences, the majority notes that we “vacated and remanded nearly 800 decisions” for resentencing after *United States v. Booker*, 543 U.S. 220 (2005), held that the Federal Sentencing Guidelines are not mandatory. *Ante*, at 108. But the burden of resentencing cannot be compared with the burden of retrying cases. And while resentencing was possible in all the cases affected by *Booker*, there is no guarantee that all the cases affected by today’s ruling can be retried. In some cases, key witnesses may not be available, and it remains to be seen whether the criminal justice systems of Oregon and Louisiana have the resources to handle the volume of cases in which convictions will be reversed.

These cases on direct review are only the beginning. Prisoners whose direct appeals have ended will argue that today’s decision allows them to challenge their convictions on collateral review, and if those claims succeed, the courts of Louisiana and Oregon are almost sure to be overwhelmed.

The majority’s response to this possibility is evasive. It begins by hinting that today’s decision will not apply on collateral review under the framework adopted in *Teague v. Lane*, 489 U.S. 288, 315 (1989) (plurality opinion). Under *Teague*, “an old rule applies both on direct and collateral review,” but if today’s decision constitutes a new procedural rule, prisoners will be able to rely on it in a collateral proceeding only if it is what we have termed a “watershed rule” that implicates “the fundamental fairness and accuracy of the criminal proceeding.” *Whorton v. Bockting*, 549 U.S. 406, 416 (2007). Noting that we have never found a new rule of criminal procedure to qualify as “watershed,” the Court hints that the decision in this case is likely to meet the same fate.

But having feinted in this direction, the Court quickly changes course and says that the application of today’s deci-

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sion to prisoners whose appeals have ended should not concern us. *Ante*, at 109. That question, we are told, will be decided in a later case. *Ibid*.

The majority cannot have it both ways. As long as retroactive application on collateral review remains a real possibility, the crushing burden that this would entail cannot be ignored. And while it is true that this Court has been chary in recognizing new watershed rules, it is by no means clear that *Teague* will preclude the application of today's decision on collateral review.

Teague applies only to a "new rule," and the positions taken by some in the majority may lead to the conclusion that the rule announced today is an old rule. Take the proposition, adopted by three Members of the majority, that *Apodaca* was never a precedent. Those Justices, along with the rest of the majority, take the position that our cases established well before *Apodaca* both that the Sixth Amendment requires unanimity, *ante*, at 92, and that it applies in the same way in state and federal court, *ante*, at 94. Thus, if *Apodaca* was never a precedent and did not disturb what had previously been established, it may be argued that today's decision does not impose a new rule but instead merely recognizes what the correct rule has been for many years.

Two other Justices in the majority acknowledge that *Apodaca* was a precedent and thus would presumably regard today's decision as a "new rule," but the question remains whether today's decision qualifies as a "watershed rule." JUSTICE KAVANAUGH concludes that it does not and all but decides—without briefing or argument—that the decision will not apply retroactively on federal collateral review and similarly that there will be no successful claims of ineffective assistance of counsel for failing to challenge *Apodaca*. See *ante*, at 129–131 (opinion concurring in part).

The remaining Justices in the majority, and those of us in dissent, express no view on this question, but the majority's depiction of the unanimity requirement as a hallowed right

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that Louisiana and Oregon flouted for ignominious reasons certainly provides fuel for the argument that the rule announced today meets the test. And in Oregon, the State most severely impacted by today's decision, watershed status may not matter since the State Supreme Court has reserved decision on whether state law gives prisoners a greater opportunity to invoke new precedents in state collateral proceedings. See *Verduzco v. State*, 357 Ore. 553, 574, 355 P. 3d 902, 914 (2015).³¹

Whatever the ultimate resolution of the retroactivity question, the reliance here is not only massive; it is concrete. Cf. *Dickerson v. United States*, 530 U. S. 428, 443 (2000) (reliance weighed heavily in favor of precedent simply because the warnings in *Miranda v. Arizona*, 384 U. S. 436, had become “part of our national culture”). In my view, it weighs decisively against overruling *Apodaca*.

In reaching this conclusion, I do not disregard the interests of petitioner and others who were convicted by a less-than-unanimous vote. It is not accurate to imply that these defendants would have been spared conviction if unanimity had been required. In many cases, if a unanimous vote had been needed, the jury would have continued to deliberate and the one or two holdouts might well have ultimately voted to convict.³² This is almost certainly the situation in Oregon, where it is estimated that as many as two-thirds of all criminal trials have ended with a non-unanimous verdict. See Brief for State of Oregon as *Amicus Curiae* 12. It is

³¹ Under our case law, a State must give retroactive effect to any constitutional decision that is retroactive under the standard in *Teague v. Lane*, 489 U. S. 288 (1989), but it may adopt a broader retroactivity rule. *Montgomery v. Louisiana*, 577 U. S. 190, 199 (2016); *Danforth v. Minnesota*, 552 U. S. 264, 275 (2008).

³² Studies show that when a supermajority votes for a verdict near the beginning of deliberations, a unanimous verdict is usually reached. See generally Devine, Clayton, Dunford, Seying, & Pryce, *Jury Decision Making: 45 Years of Empirical Research on Deliberating Groups*, 7 *Psychology, Pub. Pol'y & L.* 622, 690–707 (2001).

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impossible to believe that all these cases would have resulted in mistrials if unanimity had been demanded. Instead, after a vote of 11 to 1 or 10 to 2, it is likely that deliberations would have continued and unanimity would have been achieved.

Nevertheless, the plight of defendants convicted by non-unanimous votes is important and cannot be overlooked, but that alone cannot be dispositive of the *stare decisis* question. Otherwise, *stare decisis* would never apply in a case in which a criminal defendant challenges a precedent that led to conviction.

D

The reliance in this case far outstrips that asserted in recent cases in which past precedents were overruled. Last Term, when we overturned two past decisions, there were strenuous dissents voicing fears about the future of *stare decisis*. See *Franchise Tax Bd. of Cal. v. Hyatt*, 587 U. S. 230, 258–261 (2019) (BREYER, J., dissenting); *Knick v. Township of Scott*, 588 U. S. 180, 221–224 (2019) (KAGAN, J., dissenting). Yet in neither of those cases was there reliance like that present here.

In *Franchise Tax Board*, the dissent claimed only the airiest sort of reliance, the public’s expectation that past decisions would remain on the books. 587 U. S., at 260–261 (opinion of BREYER, J.). And in *Knick*, the dissent disclaimed any reliance at all. 588 U. S., at 223–224 (opinion of KAGAN, J.). The same was true the year before in *South Dakota v. Wayfair, Inc.*, 585 U. S. 162 (2018), where the dissent did not contend that any legitimate reliance interests weighed in favor of preserving the decision that the Court overruled. *Id.*, at 191 (opinion of ROBERTS, C. J.). And our unanimous decision in *Pearson v. Callahan*, 555 U. S. 223, 233 (2009), found that no reliance interests were involved.

In other cases overruling prior decisions, the dissents claimed that reliance interests were at stake, but whatever

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one may think about the weight of those interests, no one can argue that they are comparable to those in this case.

In *Montejo v. Louisiana*, 556 U. S. 778, 793–797 (2009), the Court abrogated a prophylactic rule that had been adopted in *Michigan v. Jackson*, 475 U. S. 625 (1986), to protect a defendant’s right to counsel during post-arraignment interrogation. The dissent did not claim that any defendants had relied on this rule, arguing instead that the public at large had an interest “in knowing that counsel, once secured, may be reasonably relied upon as a medium between the accused and the power of the State.” *Montejo, supra*, at 809 (opinion of Stevens, J.). This abstract interest, if it can be called reliance in any proper sense of the term, is a far cry from what is at stake here.

In *Citizens United v. Federal Election Comm’n*, 558 U. S. 310 (2010), where we overruled precedent allowing laws that prohibited corporations’ election-related speech, we found that “[n]o serious reliance interests” were implicated, *id.*, at 365, since the only reliance asserted by the dissent was the time and effort put in by federal and state lawmakers in adopting the provisions at issue, *id.*, at 411–412 (Stevens, J., concurring in part and dissenting in part). In this case, by contrast, what is at stake is not the time and effort of Louisiana and Oregon lawmakers but a monumental litigation burden and the potential inability to retry cases that might well have ended with a unanimous verdict if that had been required.

Finally, in *Janus v. State, County, and Municipal Employees*, 585 U. S. 878 (2018), where we overruled *Abood v. Detroit Bd. of Ed.*, 431 U. S. 209 (1977), we carefully considered and addressed the question of reliance, and whatever one may think about the extent of the legitimate reliance in that case, it is not in the same league as that present here. *Abood* had held that a public sector employer may require non-union members to pay a portion of the dues collected from union members. 431 U. S., at 235–236. In overruling

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that decision, we acknowledged that existing labor contracts might have been negotiated in reliance on *Abood*, but we noted that most labor contracts are of short duration, that unions had been on notice for some time that the Court had serious misgivings about *Abood*, and that unions could have insisted on contractual provisions to protect their interests if *Abood* later fell. *Janus, supra*, at 926–928.³³

By striking down a precedent upon which there has been massive and entirely reasonable reliance, the majority sets an important precedent about *stare decisis*. I assume that those in the majority will apply the same standard in future cases.

* * *

Under the approach to *stare decisis* that we have taken in recent years, *Apodaca* should not be overruled. I would therefore affirm the judgment below, and I respectfully dissent.

³³ The reliance in this case also far exceeds that in *Arizona v. Gant*, 556 U. S. 332 (2009), where the Court effectively overruled a decision, *New York v. Belton*, 453 U. S. 454 (1981), that allowed a police officer to search the entire passenger compartment of a car if the officer had probable cause to arrest the driver or a passenger. 556 U. S., at 335. Police departments had trained officers in reliance on the *Belton* rule, see *Gant, supra*, at 358–360 (ALITO, J., dissenting), but the burden of retraining cannot compare with conducting a large number of retrials and potentially releasing defendants who cannot be retried due to post-trial events.